



CHAPTER xlix.

An Act to extend the limits of supply of the Great Grimsby Gas Company and to confer further powers upon the Company. A.D. 1910.
[26th July 1910.]

WHEREAS the Great Grimsby Gas Company (in this Act called "the Company") were incorporated by the Great Grimsby Gas Act 1846 and further powers were conferred upon them by the Great Grimsby Gas Act 1867 and the Great Grimsby Gas Order 1885 which was confirmed by the Gas and Water Orders Confirmation (No. 2) Act 1885 : 9 & 10 Vict.
c. cxvii.
30 Vict. c. xc.
48 & 49 Vict.
c. lxiv.

And whereas the Company's limits for the supply of gas were extended by the Great Grimsby Gas Order 1906 which was confirmed by the Gas and Water Orders Confirmation Act 1906 but none of the powers of that Order have been exercised and it is expedient to repeal that Order and to extend the said limits in the manner provided in this Act : 6 Edw. 7.
c. cxxxi.

And whereas a statement of the share and loan capital of the Company authorised by and raised under the recited Acts is set forth in the First Schedule to this Act :

And whereas it is expedient to empower the Company to raise additional capital and to confer upon them the further powers contained in this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

A.D. 1910. and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

Short and
collective
titles.

1. This Act may be cited as the Great Grimsby Gas Act 1910 and the Great Grimsby Gas Acts 1846 and 1867 the Great Grimsby Gas Order 1885 and this Act may be jointly cited as the Great Grimsby Gas Acts 1846 to 1910.

Incorpora-
tion of Acts.

2.—(1) The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with this Act namely :—

(A) The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement) :

(B) The Gasworks Clauses Act 1847 :

(C) The Gasworks Clauses Act 1871 :

(D) The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested :

(E) And Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

(2) Section 13 (Power of the undertakers to contract for lighting buildings streets &c.) of the Gasworks Clauses Act 1847 as incorporated with the recited Acts and with this Act shall be read as if the words "or any premises" were inserted after the words "private building." A.D. 1910.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And unless the subject or context otherwise requires— Interpretation.

"The Company" means the Great Grimsby Gas Company;

"The Order of 1885" means the Great Grimsby Gas Order 1885;

"The recited Acts" means the Great Grimsby Gas Acts 1846 and 1867 and the Order of 1885.

EXTENSION OF LIMITS OF SUPPLY.

4.—(1) From and after the passing of this Act the limits of supply of the Company shall be extended so as to include in addition to their limits under the recited Acts the following parishes (in this Act called "the new limits of supply") (that is to say):— Extension of limits of supply.

(A) The parishes or townships of Ulceby North Killingholme and South Killingholme in the rural district of Glanford Brigg; and

(B) The parishes of Aylesby Habrough Healing Immingham and Stallingborough in the rural district of Grimsby; all in the county of Lincoln.

(2) The Company shall have and may exercise within the new limits of supply all and the like powers privileges and authorities and shall be subject to all and the like duties liabilities and obligations as they now have may exercise and are subject to within the limits of supply of the Company under the recited Acts.

(3) Provided that the Company may from time to time charge for gas supplied within the new limits of supply a sum of sixpence per one thousand cubic feet in excess of the sum from time to time charged by them for gas supplied within the

A.D. 1910. Company's limits of supply under the recited Acts but any sum so charged in excess shall not be taken into account in calculating the rate of dividend payable under section 17 (Limits of dividend on capital) of the Order of 1885.

CAPITAL &C.

Power to
raise
additional
capital.

5. The Company may from time to time raise additional capital not exceeding in the whole one hundred and twenty thousand pounds by the creation and issue of new ordinary shares or stock or of new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds Provided that—

(1) The Company shall not create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of one hundred and twenty thousand pounds:

(2) The Company shall not raise by the issue of preference shares or stock a greater amount of such additional capital than forty thousand pounds.

Incidents of
additional
capital.

6. Subject to the provisions of this Act the additional capital created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the capital of the Company authorised to be raised by the Order of 1885 and the new shares or stock were shares or stock in that capital.

New shares
or stock to be
sold by
auction or
tender.

7.—(1) All shares or stock created under the powers of this Act shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the town clerk of the borough of Grimsby and to the

clerk of every district council any part of whose district is within the limits of supply of the Company and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits of supply : A.D. 1910.

- (B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be :
- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds :
- (D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :
- (E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

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(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are not sold may be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

Power to
borrow.

8. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital including any premium thereon which at the time of borrowing has been raised under the powers of this Act but no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up.

Repeal of
provisions of
recited Acts
with respect
to appoint-
ment of
receiver.

9. Every provision in the recited Acts by which the mortgagees of the Company are empowered to enforce payment of arrears of principal or interest or principal and interest due on their mortgages by the appointment of a receiver is hereby repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have been commenced under any such provision prior to the passing of this Act.

For appoint-
ment of
receiver.

10.—(1) The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver.

(2) In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

11. The Company may create and issue debenture stock subject to the provisions of section 15 (Power to create debenture stock) of the Order of 1885. A.D. 1910.
Debenture stock.

12. All money raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend. Application of money.

13.—(1) The reserved fund which the Company have formed under section 31 of the Gasworks Clauses Act 1847 (incorporated with the Act of 1867 by section 3 of that Act and by that section made applicable to the capital authorised by the Act of 1846) and the new capital reserve fund formed under section 20 of the Order of 1885 shall be amalgamated and the fund so formed shall be called “the reserve fund.” Reserve fund.

(2) The Company may set apart for the purposes of the reserve fund the sums which they might have set apart for the reserved fund under section 31 of the Gasworks Clauses Act 1847 and the sums which they might have set apart for the new capital reserve fund (in respect both of the capital issued under the Order of 1885 and of the capital issued under this Act) if this section had not been enacted.

(3) The reserve fund may be invested in securities in which trustees are authorised by law to invest and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest.

(4) The reserve fund shall be applicable to the payment of dividends in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay dividends at the authorised rates on the ordinary capital of the Company.

(5) Save as in this Act provided no money shall in any year be carried by the Company to any reserve fund.

14.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not Power to create a special purposes fund.

A.D. 1910. — exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums to a fund to be called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Company or appointed for the purpose by the Board of Trade shall approve as being—

(A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

Interim
dividend.

15. The directors may in any year without calling a meeting of shareholders or stockholders for the purpose declare an interim half-yearly dividend out of the then ascertained profits of the Company Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any one half-year one half of the amount of the authorised dividend or as regards capital issued under the Order of 1885 or this Act one half of the amount of the standard dividend.

Closing of
transfer
books pre-
vious to
declaring
interim divi-
dend.

16. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in a newspaper published in the borough of Grimsby and any transfer made during the time when the transfer books

are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend. A.D. 1910.

17. If any money is payable to a shareholder stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of his guardian or of the committee of his estate (as the case may be) shall be a sufficient discharge to the Company. Receipt in case of persons not sui juris.

LANDS.

18. Subject to the provisions of this Act the Company may upon the land described in the Second Schedule to this Act construct erect and maintain alter improve enlarge extend and renew or discontinue gasholders receivers drains sewers mains pipes meters machinery and other works apparatus and conveniences and may do all such acts as they may think proper for the storage of gas and of coke and other residual products obtained in the manufacture of gas and matters producible therefrom and the Company may store gas upon that land and may supply the same therefrom. Power to construct works for storage of gas.

19. In addition to the lands now held by the Company and any other lands which they may acquire or hold under the powers of the recited Acts or of this Act they may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) any lands and hereditaments not exceeding in the whole ten acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to the Act of 1867. Power to purchase lands by agreement.

20. The Company may erect and maintain dwelling-houses for persons in their employment upon the lands for the time being belonging or leased to the Company. Dwelling-houses for persons in Company's employment.

21. Subject to the provisions of the Lands Clauses Consolidation Act 1845 the Company may sell or let on lease for such periods as they think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of their undertaking and may retain and hold sell and dispose of any interest in or reversion to any lands Power to sell or lease lands.

A.D. 1910. so let and any such sale disposal or lease may be for such consideration and subject to such reservations stipulations restrictions and provisions and generally upon such terms and conditions as the Company think fit.

MISCELLANEOUS.

Testing-
place and
testing for
quality.

22.—(1) For the purposes of the Gasworks Clauses Act 1871 the prescribed testing-place shall be the testing-place provided by the Company at their works.

(2) The quality of the gas supplied by the Company shall with respect to its illuminating power be such as to produce at the testing-place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

(3) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Company or of the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(4) The Company shall within three months after the passing of this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

(5) The provisions of the recited Acts so far as the same are inconsistent with this section are hereby repealed.

Power to
supply gas
fittings.

23.—(1) The Company may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings (all of which are in this Act called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other

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purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be.

(3) All fittings let for hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company:

Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(4) The Company shall only be entitled to the privileges and exemptions conferred by subsections (2) and (3) of this section in respect of such of the said fittings as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

24.—(1) The Company may on the application of the owner or occupier of any premises within their limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply.

Power to lay
pipes in
streets not
dedicated to
public use.

(2) The provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

25. The Company may lay down and repair take up alter relay or renew mains pipes and culverts within their limits of supply for the purpose of procuring conducting or disposing of

Power to
lay down
pipes for
ancillary
purposes.

A.D. 1910. — any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Gas consumers to give notice to Company before removing.

26.—(1) At least twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur.

(2) Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

Notice to discontinue supply of gas.

27. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Power to refuse supply to persons in debt for other premises.

28. If a person requiring a supply of gas for any premises occupies or has occupied other premises at which gas is being or has been supplied to him by the Company and has not paid all money due from him to the Company for the supply of gas or for the rent of a meter they may refuse to furnish to him a supply of gas until he pays the same.

Period of error in defective meters.

29.—(1) In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

(2) The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall

be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company. A.D. 1910.

30.—(1) Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Company may cease to supply him with gas. Anti-fluctuators for gas engines.

(2) The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

31. The Company may contract with any local authority company or persons supplying gas under parliamentary powers in any district adjacent to the Company's limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any street beyond their limits of supply. Company may contract with local authority &c. for supply in bulk.

32.—(1) No person shall be disqualified for becoming or continuing a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his or any partner of his being or becoming interested in any contract with the Company either in his own behalf or as a member of any other company corporation local authority or partnership but no such person shall as a director vote in respect of any question as to any such contract or the remuneration attached to any such office or place of trust or profit. As to qualification of directors.

(2) If any director shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind or shall neglect to attend a meeting of directors for six months (unless such neglect to attend be occasioned by illness or by any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant.

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Continuing
directors.

33. The continuing directors may act notwithstanding any vacancy in their body but so that if at any time the number of directors of the Company holding office shall be less than five the directors shall not except for the purpose of filling vacancies and allotting shares to any proposed director or directors act so long as the number is below such minimum.

Notice of
candidature
for office of
director.

34. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected a director of the Company in place either of a director retiring by rotation or of a director dying refusing to act or ceasing to be qualified or being disqualified to act unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary of the Company or left at the office of the Company fourteen days at least before the day of election.

As to
appointment
of managing
director.

35.—(1) The directors of the Company may appoint one or more of their body to be managing director or managing directors of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place or places.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers Provided that the directors shall be responsible for the acts of any managing director acting under the powers of this section.

Power for
directors to
determine
remuneration
of secretary.

36. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary of the Company.

37. Notwithstanding anything contained in the Companies A.D. 1910.
Clauses Consolidation Act 1845 as from the first day of January Qualifica-
one thousand nine hundred and eleven no person shall be tion of
appointed as auditor of the accounts of the Company who auditors.
shall not be either a chartered accountant or an incorporated
accountant and it shall not be necessary for such person to be
a shareholder in the Company.

38. It shall be lawful for the Company to make super- Power to
annuation and other allowances and to pay pensions to any make super-
officers servants or employees of the Company who may be annuation
temporarily or permanently disabled by sickness infirmity or age and other
and for that purpose to apply the funds and revenues of the allowances.
Company.

39. The directors of the Company may subscribe or make Power to
donations to infirmaries and hospitals within the limits of supply directors to
for the time being of the Company and to convalescent homes and subscribe to
to the benevolent and sick funds of the employees of the Com- hospitals &c.
pany and may for that purpose apply the funds and revenues
of the Company.

40. Proceedings for the recovery of any demand made Recovery of
under the authority of this Act or of the recited Acts or of demands.
any incorporated enactment whether provision is or is not
made for the recovery in any specified court or manner may
be taken in the county court provided that the demand does
not exceed the amount recoverable in that court in a personal
action.

41. The enactments mentioned in the Third Schedule to this Repeal of
Act are hereby repealed. scheduled
enactments.

42. In executing the works by this Act authorised and For pro-
exercising other powers within the new limits of supply so far as tection of
main roads and county bridges within the parts of Lindsey in Lincolnshire
the county of Lincoln are thereby affected the following provisions parts of
for the protection of the county council of the administrative Lindsey
county of the parts of Lindsey Lincolnshire (in this section County
called "the county council") shall have effect unless otherwise Council.
agreed on in writing between the county council and the Com-
pany (that is to say) :—

- (1) All mains conduits or lines of pipes or works to be
laid in or along any main road shall be constructed

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and laid in such position at the side thereof or where necessary under the metalled portion of the road but in such case at a depth of not less than three feet below the surface thereof as the county council shall by writing under the hand of their surveyor direct and shall not be constructed or laid in upon or across any county or main road bridge or any arch connected therewith but shall be carried over the stream crossed by such bridge by means of wrought-iron riveted tubing (or other suitable method to be agreed on between the parties) alongside of and attached to such bridge or arch and the gradient of such bridge and of the respective approaches thereto shall not be altered:

- (2) All mains lines of pipes conduits or works to be constructed or laid in along or across or in any way affecting any main road or county or main road bridge or any approach thereto shall be executed at the expense of the Company under the superintendence and to the reasonable satisfaction of the said surveyor and in accordance with plans sections and specifications to be submitted to and approved of by him in writing before the commencement of any such works and all such plans sections and specifications shall be delivered to the said surveyor not less than seven days before the Company commence to break up or open any main road or street for the purpose of laying the said mains conduits or lines of pipes Provided that if the said surveyor shall not within fourteen days after the same shall have been submitted to him so express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof:
- (3) The works shall be so executed and all necessary repairs thereto shall be so executed as not in any way to stop or unreasonably interfere with or impede the traffic of any main road or county or main road bridge or any approach thereto and all such works shall be proceeded with and completed with all possible despatch and during the laying of the mains

every precaution shall be taken to avoid danger or injury to persons or cattle or stock using the road and in particular the Company will cause danger lights to be placed at night at the end and by the side of the trenches which may be dug and temporarily left open in or across any road so that all such lights are lit and kept burning from one hour after sunset to one hour before sunrise whilst the said trenches remain open so as to effectually warn the traffic passing on the said road and a watchman shall also be employed by the Company to warn passengers on the road when necessary during the night:

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(4) The Company shall pay to the county council the reasonable costs of their surveyor in relation to the examination of the said plans sections and specifications and the superintendence by this section authorised:

(5) Notwithstanding anything in this Act contained it shall be lawful for the county council at any time or times to alter the level of divert widen or improve any such main road and also to remove alter widen or renew any such county or main road bridge or the approaches thereto in alongside or near to which any such mains pipes or works are carried in the same manner as they might have altered the level of diverted widened or improved removed altered or renewed any such main road or bridge or the approaches thereto if this Act had not been made and as if such mains pipes or works had not been constructed or laid in over or alongside or near to such main road or bridge respectively without making any compensation to the Company for any expense or loss to which the Company may be put in consequence of such alteration of level diversion widening improvement alteration or renewal And in the event of any such main road or bridge or the approaches thereto in alongside or near to which such mains pipes or works are laid being diverted widened or improved removed altered or renewed as aforesaid the Company shall at their own expense

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as and when requested by the said surveyor forthwith remove or alter the position of the said mains conduits or pipes and the works by which the same are carried alongside or near to any such main road or bridge or the approaches thereto as aforesaid and replace the same to the satisfaction of the said surveyor. Provided that before and during such diversion widening improvement removal alteration or renewal of any such main road or bridge as aforesaid the county council shall afford at the cost of the Company reasonable facilities for temporarily carrying such mains or pipes along the main road or across the stream so as not to interrupt the continuous supply of gas :

- (6) The county council shall not be liable for or in respect of any damage or injury done to any main conduit or line of pipes of the Company in or under the metalled portion of any road or street arising from the ordinary use by the county council or by any district council of a steam or other roller not exceeding twelve tons in weight or from the passage of the traffic on such road or street :
- (7) The Company shall to the satisfaction of the surveyor of the county council make good and thereafter for the space of twelve months keep in repair the portion of all roads broken up by the Company in the exercise of any of the powers by this Act authorised and particularly where the main conduit or line of pipes is laid on the metalled portion of any main road or street the soil shall be rammed over the pipes when laid in six-inch layers with an iron-headed rammer and large slag or chalk nine inches in depth and of the full width of the trench shall be hand-placed on the top of the soil then four-and-a-half inches of two-and-a-quarter-inch broken slag and finished with the best of the displaced road materials and such quantity of one-and-three-quarter-inch granite as may be necessary and the surface shall be rolled and consolidated with a heavy roller :
- (8) Notwithstanding anything in this Act contained if any difference arise between the Company and the county

council touching this section or anything to be done thereunder such difference shall be referred to two justices of the peace acting in and for the parts of Lindsey whose decision upon the matters in question shall be final binding and conclusive on all parties. A.D. 1910.

43. In executing the works and exercising the powers by this Act authorised so far as they affect the roads bridges and culverts within the rural district of Grimsby vested in or under the control of the Grimsby Rural District Council (in this section called "the council") the following provisions for the protection of the council shall have effect unless otherwise agreed on in writing between the council and the Company (that is to say):—

For protection of
Grimsby
Rural District Council.

- (1) All mains conduits or lines of pipes or works to be laid in or along any road shall be constructed and laid in such position at the side thereof or where necessary under the metalled portion of the roads but in such case at a depth of not less than three feet below the surface thereof as the council shall by writing under the hand of their surveyor direct and shall not without the consent in writing of the council be constructed or laid in upon or across so as to interfere with the structural part of any bridge or culvert but shall be carried over or under the stream drain or watercourse crossed by such bridge or culvert by means of wrought-iron riveted tubing (or other suitable method to be agreed on between the parties) alongside of and attached to such bridge or culvert and the gradient of such bridge and of the respective approaches thereto shall not be altered:
- (2) All mains lines of pipes conduits or works to be constructed or laid in along or across or in any way affecting any roads bridge or culvert or any approach thereto shall be executed at the expense of the Company under the superintendence and to the reasonable satisfaction of the said surveyor and in accordance with plans sections and specifications to be submitted to and approved of by him in writing before the commencement of any such works and all such plans sections and specifications shall be delivered to the said surveyor not less than seven days before the

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Company commence to break up or open any road for the purpose of laying the said mains conduits or lines of pipes. Provided that if the said surveyor shall not within fourteen days after the same shall have been submitted to him express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof:

- (3) The works shall be so executed and all necessary repairs thereto shall be so executed as not in any way to stop or unreasonably interfere with or impede the traffic of any road bridge or culvert or any approach thereto and all such works shall be proceeded with and completed with all possible despatch and during the laying of the mains every precaution shall be taken to avoid danger or injury to persons or cattle or stock using the road and in particular the Company will cause danger lights to be placed at night at the end and by the side of the trenches which may be dug and temporarily left open in or across any road so that all such lights are lit and kept burning from one hour after sunset to one hour before sunrise whilst the said trenches remain open so as to effectually warn the traffic passing on the said road and a watchman shall also be employed by the Company to warn passengers on the road when necessary during the night:
- (4) The Company shall pay to the council the reasonable costs of their surveyor in relation to the examination of the said plans sections and specifications and the superintending the works by this section authorised:
- (5) Notwithstanding anything in this Act contained it shall be lawful for the council at any time or times to alter the level of divert widen or improve any road and also to remove alter widen or renew any bridge or culvert or the approaches thereto in alongside or near to which any such mains pipes or works are carried in the same manner as they might have altered the level of diverted widened or improved removed altered or renewed any road bridge or culvert or the approaches thereto if this Act had not

been made and as if such mains pipes or works had not been constructed or laid in over alongside or near to such road bridge or culvert respectively without making any compensation to the Company for any expense or loss to which the Company may be put in consequence of such alteration of level diversion widening improvement alteration or renewal And in the event of any road bridge or culvert or the approaches thereto in alongside or near to which such mains pipes or works are laid being diverted widened or improved removed altered or renewed as aforesaid the Company shall at their own expense as and when required by the said surveyor forthwith remove or alter the position of the said mains conduits or pipes and the works by which the same are carried alongside or near to any road bridge or culvert or the approaches thereto as aforesaid and replace the same to the satisfaction of the said surveyor Provided that before and during such diversion widening improvement removal alteration or renewal of any road bridge or culvert as aforesaid the council shall afford at the cost of the Company reasonable facilities for temporarily carrying such mains or pipes along any road bridge or culvert or across any drain or stream so as not to interrupt the continuous supply of gas: A.D. 1910.

- (6) The council shall not be liable for or in respect of any damage or injury done to any main conduit or line of pipes of the Company in or under the metalled portion of any road or street arising from the ordinary use by the council of a steam or other roller not exceeding fifteen tons in weight or from the passage of the traffic on such road or street:
- (7) The Company shall to the satisfaction of the surveyor of the council make good and thereafter for the space of twelve months keep in repair the portion of all roads broken up by the Company in the exercise of any of the powers by this Act authorised and particularly where the main conduit or line of pipes is laid on the metalled portion of any road or street the soil shall be rammed over the pipes when laid

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in six-inch layers with an iron-headed rammer and large slag or chalk nine inches in depth and of the full width of the trench shall be hand-placed on the top of the soil then four-and-a-half inches of two-and-a-quarter-inch broken slag and finished with the best of the displaced road materials and such quantity of one-and-three-quarter-inch granite as may be necessary and the surface shall be rolled and consolidated with a heavy roller:

- (8) Any dispute or difference which may arise between the Company and the council with reference to the provisions of this section or in any way arising thereout shall be settled by arbitration by an engineer or other fit person to be appointed by the President of the Institution of Civil Engineers on the application of the Company and the council or either of them and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of
Glanford
Brigg Rural
District
Council.

44. In executing the works and exercising the powers authorised and conferred by the recited Acts or this Act so far as they affect the roads bridges and culverts in the rural district of Glanford Brigg vested in or under the control of the Glanford Brigg Rural District Council (in this section called "the council") the following provisions for the protection of the council shall unless otherwise agreed in writing between the council and the Company apply and have effect (that is to say):—

- (1) All mains or pipes to be laid in or along any such road shall be laid in such position as the council under the hand of their surveyor shall reasonably approve or in case of difference as shall be determined by arbitration in manner herein-after prescribed:
- (2) The plan required by section 9 of the Gasworks Clauses Act 1847 shall clearly indicate the position manner and depth in and at which the proposed works are intended to be laid and shall be delivered or sent to the council or their surveyor by the Company not less than seven days before they commence to break or open up any road for the purpose of executing the works:

(3) Nothing in this Act contained shall interfere with the right of the council to alter the level of or deviate or improve in any manner they think fit any road in or along which any mains or pipes of the Company shall have been laid and when necessary the Company shall so soon as practicable after receiving notice in writing under the hand of the clerk or surveyor of the council alter the position of any such mains or pipes in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner herein-after prescribed and the expenses of any such alteration shall be paid to the Company by the council :

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—

(4) All works shall be so executed by the Company as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on the road :

(5) The council shall not except in case of negligence be liable for or in respect of any damage or injury done to any work of the Company in or under the metalled portion of any road arising from the ordinary use by the council of a steam or other roller not exceeding fifteen tons in weight or from the passage of the traffic on such road :

(6) If any difference arise between the Company and the council under this section such difference shall be settled by arbitration by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

45. For the protection of the commissioners of sewers for the county of Lincoln (in this section referred to as "the commissioners") the following provisions shall except so far as it may be otherwise agreed in writing between the commissioners and the Company apply and have effect within the new limits of supply (that is to say):—

For protection of
Lincolnshire
Commissioners of
Sewers.

(1) If for the purposes of this Act the Company find it necessary or expedient to construct or lay down any

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work over under or in any way affecting any river sewer drain watercourse bank or other work subject to the jurisdiction or control of the commissioners such intended work shall be constructed or laid down only in accordance with plans sections and specifications which shall be previously submitted to the commissioners and shall be subject to their reasonable approval in order that any such intended work shall not interrupt the free passage of water through or otherwise interfere with or prejudicially affect any works under the jurisdiction or control of the commissioners or the maintenance thereof and all such intended works shall be executed repaired and maintained to the reasonable satisfaction of the commissioners by and at the expense of the Company:

- (2) If the commissioners at any time or times hereafter in the exercise of their powers and duty deem it necessary to construct any additional or other works or to alter enlarge or repair any works subject to their control over under or by the side of which any works of the Company may have been constructed or laid the commissioners may by notice in writing require the Company to alter the situation of the same in such manner and within such reasonable time as is specified in the notice and if such notice is not complied with or in case of emergency on giving as long a notice as practicable the commissioners themselves may at the cost of the Company raise sink or otherwise deal with the same in as convenient a manner as the circumstances will admit and doing as little damage as may be but without being liable to pay compensation:
- (3) If by reason of the execution of the works by this Act authorised any loss damage or expense shall at any time be sustained or incurred by the commissioners the Company shall on demand repay to the commissioners the amount thereof:
- (4) Nothing in this Act contained shall be deemed or construed to prejudice diminish alter abridge or take away any of the jurisdiction rights powers or authorities vested in the commissioners and all such

jurisdiction rights powers and authorities shall be as good valid and effectual to all intents and purpose as if this Act had not been passed: A.D. 1910.

- (5) If any difference shall arise between the commissioners and the Company under this section the same shall be referred to an arbitrator to be appointed by the Board of Trade upon the application of either party.

46. The following provisions for the protection of the Great Central Railway Company and the Humber Commercial Railway and Dock Company (each of whom is in this section referred to as "the protected company") shall unless otherwise agreed in writing between the Company and the protected company apply and have effect with respect to the exercise by the Company of the powers by this Act conferred upon the Company (that is to say):—

For protec-
tion of Great
Central Rail-
way Com-
pany and
Humber
Commercial
Railway and
Dock Com-
pany.

- (1) In laying down and executing and in altering repairing or renewing any gas mains pipes culverts or other works (not being the repair or renewal of existing works of which the character and position are not altered) upon across under or adjoining or in any way affecting the railways docks lands and property now or hereafter belonging or leased to used or occupied by the protected company or the bridges approaches viaducts stations or other works or any level crossing of or repairable or used by the protected company (all or any part whereof as the case may be is in this section included in the expression "the protected property") the same shall be done and completed with all reasonable despatch from the commencement thereof and shall (except in cases of emergency) be executed under the superintendence and to the reasonable satisfaction of the engineer for the time being of the protected company if such engineer shall attend to superintend the same and only according to plans and in such manner as shall previously be approved by him in writing or in case of difference as may be determined by arbitration in the manner herein-after provided Provided that if for twenty days after plans have been sent to the said engineer he shall not have signified to the Company his disapproval thereof and his requirements in regard

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thereto he shall be deemed to have approved the plans and the manner in which the works and things are proposed to be done :

- (2) All such works and things shall be done by and at the expense of the Company (except as is in this section otherwise provided) who shall also at the like expense restore and make good to the reasonable satisfaction of the said engineer the roads over or under any such bridges or level crossings or the approaches thereto so far as the same may be disturbed or interfered with by or owing to any operations of the Company :
- (3) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to the protected property and so as to cause no interruption to the passage or conduct of the protected company's traffic :
- (4) If any injury or interruption as aforesaid shall be caused by or in any way be owing to any act or default or to the works or operations of the Company the Company shall make compensation to the protected company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner herein-after provided :
- (5) If the protected company at any time or times hereafter require (of which they shall be the sole judges) to construct any additional or other works upon their lands railways or docks or to rebuild alter or repair any railway bridge viaduct dock or work belonging to or repairable or used by them upon across over or under which any of the gas mains pipes culverts or other works of the Company may have been constructed or laid the protected company may on giving to the Company fourteen days' notice in writing under the hand of their secretary or engineer and in case of emergency (of which the said engineer shall be the sole judge) on giving as long a notice as possible divert support or carry the said gas mains pipes culverts or other works of the Company upon

across over or under the protected property at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such gas mains pipes culverts or other works Provided that the protected company shall not in any way interfere with any of the mains pipes culverts or other works of the Company until they shall have made all such arrangements as the Company may reasonably require for preventing any loss of gas or any interruption in the supply of gas : A.D. 1910.

- (6) Any additional expense which the protected company may reasonably and properly incur in widening altering reconstructing or maintaining any of their railways docks bridges viaducts or works by reason of the existence of any mains pipes or other works of the Company upon across over or under the same shall be paid by the Company to the protected company :
- (7) The Company shall bear and pay to the protected company all costs reasonably and properly incurred by the protected company in watching lighting and protecting the protected property with reference to and during the construction repair or renewal by the Company of their mains pipes and other works upon or across the protected property :
- (8) Any dispute or difference which may arise between the Company and the protected company with reference to the provisions of this section or in any way arising thereout shall be settled by arbitration by an engineer or other fit person to be appointed by the President of the Institution of Civil Engineers on the application of the Company and the protected company or either of them and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

47. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1910. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

STATEMENT OF CAPITAL AUTHORISED BY AND RAISED UNDER
THE RECITED ACTS.

Act or Order.	Description of Capital.	Amount authorised.	Maximum or Standard Dividend or Interest.	Amount paid up.	Remaining to be issued.
1.	2.	3.	4.	5.	6.
Act of 1846 -	Ordinary stock -	£ 16,500	10 per cent. maximum.	£ s. d. 16,500 0 0	£ s. d. —
Act of 1867 -	Ordinary stock -	60,000	10 per cent. so long as charge for gas does not exceed 2s. 9d. per thousand cubic feet.	79,000 0 0	—
	Ordinary stock (converted loan capital).	19,000		—	—
Order of 1885	Ordinary shares -	80,000	7 per cent. Standard.	22,050 0 0	26,658 4 6
	Preference stock -		*4 per cent. -	20,000 0 0	
	Premiums on issue of shares.		—	11,291 15 6	
Ditto -	Loan capital -	20,000	5 per cent. -	—	20,000 0 0
Totals -	- - - -	195,500	- - - -	148,841 15 6	46,658 4 6

* Fixed by resolution.

THE SECOND SCHEDULE.

A piece of land situate in the parish of Immingham in the county of Lincoln and containing with the site of a 15-foot road leading thereto from the parish road leading from Stallingborough to Immingham 2 acres or thereabouts and forming the south corner and south-east side of the field numbered 78 on the 25-inch Ordnance Survey map of the parish of Immingham of 1905 revision and bounded on the north-east and north-west by hereditaments belonging or reputed to belong to William Nainby Manby and on the south-east and south-west by hereditaments belonging or reputed to belong to Ernest George Pretyman.

THE THIRD SCHEDULE.

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ENACTMENTS REPEALED.

Great Grimsby Gas Act 1846—

Section 35 and
Section 36.

Great Grimsby Gas Act 1867—

Section 21	Section 40
Section 25	Section 41
Section 32	Section 42
Section 33	Section 43
Section 35	Section 44
Section 36	Section 45
Section 37	Section 46
Section 38	Section 47 and
Section 39	Section 49.

Great Grimsby Gas Order 1885—

So much of section 4 as incorporates the provisions of the
Companies Clauses Consolidation Act 1845 with respect
to the conversion of the borrowed money into capital.

Section 7.

Gas and Water Orders Confirmation Act 1906—

The whole of the Great Grimsby Gas Order 1906 and so
much of the Act as confirms that Order.

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